

Rupesh Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · Writ-C No. 41071 of 2019 · Writ-C No. 41071 of 2019 · **Writ disposed; EE to hear objections and pass a speaking final order; coercive recovery stayed; s.127 appeal if aggrieved.**

HEADNOTE

Without examining the demand or the alleged Supply Code breach, the Allahabad High Court directed the consumer to appear before the Executive Engineer with objections, required a speaking final order within four weeks, stayed coercive recovery for six weeks or till disposal of the objection, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003. Failure to appear would automatically revive the recovery citation.

FACTUAL SUMMARY

Rupesh Kumar Singh sought certiorari to quash a demand notice dated 28 May 2018 for recovery of Rs. 6,40,116 and a citation dated 24 May 2019 issued by the Tehsildar, Sadar, District Mirzapur. He alleged that the electricity department was taking coercive recovery without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. The writ was first listed on 12 December 2019 to explain delay and laches, then heard on 20 December 2019.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation-to-section-127-after-speaking-final-order

HOLDING

A writ challenging a demand notice and recovery citation on the plea of coercive recovery without hearing and without following the Supply Code is disposed by directing the consumer to appear before the Executive Engineer with objections; the Engineer must pass a speaking and reasoned final order; coercive action is stayed for a limited period or till that objection is decided; any challenge to the final order lies in appeal under Section 127 of the Electricity Act, 2003; if the consumer fails to appear, the citation revives automatically. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections, the Court disposed of the writ and left any further challenge to that order to a Section 127 appeal. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment The Court required the Executive Engineer to pass a 'final order' by a speaking and reasoned decision, and only thereafter kept a Section 127 appeal open, rather than examining the demand on the writ. ¶ 1

alternative-remedy-section-127-appeal If aggrieved by the Executive Engineer's final order, the consumer was left to appeal under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE AND RECOVERY CITATION WERE ISSUED IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR WITHOUT OPPORTUNITY OF HEARING

¶ 1

NOT DECIDED — MERITS AND QUANTUM OF THE DEMAND OF RS. 6,40,116

¶ 1

NOT DECIDED — DELAY AND LACHES IN FILING THE WRIT PETITION

The 12 December 2019 listing called for a supplementary affidavit on delay; the 20 December 2019 disposal did not decide that objection. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.